2130

Executive Order.

Pursuant to the provisions of Section 2 of the Tariff Act of October 3, 1913, providing for an income tax, and which section contains in paragraph G, sub-paragraph (d) the following provision,

> When the assessment shall be made, as provided in this section, the returns, together with any corrections thereof which may have been made by the Commissioner, shall be filed in the office of the Commissioner of Internal Revenue and shall constitute public records and be open to inspection as such: provided, That any and all such returns shall be open to inspection only upon the order of the President, under rules and regulations to be prescribed by the Secretary of the Treasury and approved by the President.
>
> Provided further, That the proper officers of any State imposing a general income tax may, upon the request of the governor thereof, have access to said returns or to any abstract thereof, showing the name and income of each such corporation, joint stock company, association or insurance company, at such times and in such manner as the Secretary of the Treasury may prescribe,

and whereas the State of West Virginia does not have a general income tax, and, therefore, the Secretary of the Treasury cannot under the law grant permission for the inspection of returns by said State,

it is hereby ordered, under the authority vested in the President to open to inspection any and all returns of annual net income, that the returns of annual net income for the year 1913 of the corporations, the names of which have been or will be furnished by Governor H. D. Hatfield of the State of West Virginia, shall be subject to inspection in accordance with the rules and regulations prescribed by the Secretary of the Treasury and approved by the President, bearing even date herewith.

WOODROW WILSON

THE WHITE HOUSE,
January 26, 1915.

[No. 2130.]